DIVISION BENCH ITEM NO.111

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.10/ALD/2022 in CA (CAA) No.3/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 15th February, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**A-ONE AGRIFOODS AND BEVERAGES PVT LTD & ORS WITH SUPERLATIVE WINES PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Amit Saxena, Sr. Adv. Assisted by *: For the Petitioner-Companies*
Sh. Anang Kumar Shandilya alongwith
Sh. Anurup Dutta, Advs.

Sh. Ajeet Kumar Singh, AOL *: For the OL/ALD*

Sh. Krishna Dev Vyas, Adv. *: For the RoC*

Sh. Krishna Agarwal, Sr.S.C. *: For the IT Deptt.*

ORDER

1. In this case, the reports on behalf of the ROC, OL as well as Rd have already been filed, wherein no adverse observations are stated to have been raised by the Ld. Counsel representing the aforesaid authorities.

2. The report on behalf of the Income Tax Department has also been field, where certain outstanding amount is shown to be pending for payment by the transferee company.

3. With respect to the aforesaid observations, the Ld. Counsel representing

-Sd- ***-Sd-***

the petitioner-company states that an affidavit has been filed on 14th February, 2024, where the amount of outstanding amount of tax shown to be paid by the transferee company, has already been paid attaching therewith the details of the challans reflected therein.

4. With respect to the observations of the Income Tax Department about pendency of the proceedings U/s 147, the Ld. Counsel representing the petitioner-company states that an affidavit has been filed vide Diary No.2904 dated 9th November, 2023 whereby vide its paras no.4 to 6, the undertaking for compliance of the Section 170A of the Income Tax Act, has been filed.

5. Further, with respect to the outstanding demand for the assessment year 2017-18 for an amount of Rs.20,000/- with respect to the transferor company, the said outstanding amount has since been paid and the same is also reflected in the aforesaid affidavit dated 9th November, 2023.

6. Matter heard. Order reserved.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

15th February, 2024

Avaneesh Kumar Singh
(Stenographer)